

City Contract # 5-8-19

PROFESSIONAL SERVICES AGREEMENT
for

Miscellaneous Greenway Segments

THIS AGREEMENT is made and entered into this _____ day of _____, 2019, by and between the City of Cheyenne, located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and Summit Engineering, LLC, located at 5907 Townsend Place, Cheyenne, Wyoming 82009 ("Consultant").

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK

The Consultant agrees to provide 100% design services for five Greenway segments and 35% design services for segment No. 6 in accordance with Scope of Work (SOW) dated December 21, 2018, attached hereto as Exhibit A, incorporated by reference and expressly made a part hereof.

2. TIME OF PERFORMANCE

The work included in this Scope of Work will be completed by December 31, 2019. The services will be completed within the stipulated period indicated in the attached Exhibit A, Proposal for Engineering Services.

3. CONSULTANT RESPONSIBILITY

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances at the same time and in the same or similar locality. Upon notice to the Consultant and by mutual agreement between the parties, the Consultant will, without additional compensation, correct those services not meeting such a standard.

4. COMPLIANCE WITH LAWS

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

5. DRUG-FREE WORKPLACE

In compliance with the Drug Free Work Place Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to

alcohol and drug usage by City Employees. All architects, engineers and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

6. INDEMNIFICATION/HOLD HARMLESS

The Consultant agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

7. INSURANCE REQUIREMENTS

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a “claims made” policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant’s services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said “claims made” coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates “claims made” coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period (“tail coverage”) which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies, and shall provide the City with a copy of the endorsements. This requirement does not apply to workers’ compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City’s failure to request or review such policies, endorsements, or certificates shall not affect the City’s rights or Consultant’s obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

8. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex.
9. COMPENSATION
In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant a not to exceed amount of Ninety Two Thousand Two Hundred Dollars (\$92,200.00) for the 100% design of the first five segments, and Thirty-Two Thousand Five Hundred Fifty Dollars (\$32,550.00) for the 35% completion of segment No. 6. The combined compensation limit is One Hundred Twenty-Four Thousand Seven Hundred Fifty Dollars (\$124,750.00). Invoices will be issued monthly, at approximately the first day of each month, per the fee schedules as listed in Exhibit A, Proposal for Engineering Services.
10. MONTHLY REPORT
With every monthly billing, Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.
11. INDEPENDENT CONSULTANT
The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.
12. TAXES
The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts and obligations incurred by and in connection with its operations under this Agreement.
13. DEFAULT
Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.
14. REMEDIES
In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
- b. Treat the Agreement as continuing and require specific performance.

15. TERM AND TERMINATION

This Agreement shall be in effect until December 31, 2019.

The City may, without cause, and upon thirty days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retain all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

21. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

22. ENTIRETY OF AGREEMENT

This Agreement consisting of six (6) pages, Exhibit A Proposal for Engineering Services, consisting of eight (8) pages, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

City of Cheyenne

(SEAL)

Attest:

By: _____
Marian J. Orr, Mayor

Kristina F. Jones, City Clerk

Date: _____

Consultant

By: _____

Print Name: _____

Date: _____

Summit Engineering, LLC
5907 Townsend Place
Cheyenne, WY. 82009
307-637-0681

December 21, 2018

Mr. Richard Zita, Greenway Project Manager
City of Cheyenne, Urban Planning Dept.
2101 O'Neil Avenue, Room 205
Cheyenne, WY. 82001

Re: Professional Engineering Services - for the proposed engineering design of Miscellaneous Greenway Segments in Laramie County, Wyoming.

Dear Mr. Zita:

Summit Engineering is pleased to present this proposal and has assembled a team that has more the 20-years' experience working together on the Cheyenne Greenway System. Our team provides the technical experience, civil design expertise, construction management capabilities, and local knowledge necessary to provide for a successful project. The team members are:

- Surveying - Steil Surveying Services, Cheyenne
- Geotechnical Engineering - Terracon Consulting Engineers, Cheyenne
- Structural Engineering - Ayres Associates

During the pre-design phase of the project Our team shall meet with City staff, Wyoming Department of Transportation (W.D.O.T.) and effected property owner to determine any constraints that exist to accommodate the Greenway segments. Once the site constraints are identified we shall develop 35% preliminary plan(s) for review and acceptance by City, W.D.O.T. and effected property owners prior to proceeding with the next level of design.

We look forward to working with you through the many challenges this project will have and to the successful completion.

Sincerely,



Larry R. Gallagher, P.E., President
Summit Engineering, LLC

Summit Engineering, LLC

**5907 Townsend Place
Cheyenne, WY. 82009
307-637-0681**

December 21, 2018

Mr. Richard Zita, Greenway Project Manager
City of Cheyenne, Urban Planning Dept.
2101 O'Neil Avenue, Room 205
Cheyenne, WY. 82001

Re: Professional Engineering Services - for the proposed engineering design of Miscellaneous Greenway Segments in Laramie County, Wyoming.

Dear Mr. Zita:

We are pleased to submit the following proposal for Professional Services in connection with the development of the **Miscellaneous Greenway Segments**

Summit Engineering, LLC, hereinafter referred to as the Engineer, proposes to furnish Professional Services to City of Cheyenne Urban Planning Department, hereinafter referred to as the Client; the Scope of Services and for the fees outlined below.

Project Description:

Provide complete Engineering Construction Plans, Surveying, Specifications, Bid Documents and permitting for the following six (6) **Miscellaneous Greenway Segments** as described in the City's Request for Proposal, "Miscellaneous Greenway Design Segments Scope of Work", Dated: December 5, 2018.

100% Design Segments:

1. Powderhouse (between Gardenia and Storey Blvd.)
2. South Park (between Partoyan to Walterschied: Walterschied to existing Greenway Bridge on Deming Dr.).
3. Henderson Drive (from E. Nationway to existing Greenway).
4. Downtown Connector (MLK park across Lincolnway to Dey Ave. to Ames Ave. to Pump House park).
5. Cowboy Dodge (from Advanced Auto to Fat Boys driveway).

35% Design Segments:

6. Pump House Park (to 15th via Union Pacific underpass at Reed ROW).

Powderhouse:

- Part 1** Provide Surveying Services for topographic survey of proposed project area.
- Topographic survey and right-of-way investigation from existing Greenway path north of Storey Blvd. to and including the intersection of Powderhouse Road and Gardina Drive.
- Fee \$ 1,000.00
- Part 2** Provide Engineering Services for preparation of Drainage Worksheet for a project with a total project area less than 20,000 square-feet.
- Fee \$ 100.00
- Part 3** Provide Engineering Services for preparation of 35% design plans for Clients review.
- Fee \$ 1,300.00
- Part 4** Provide Engineering Services for preparation of 65%, 95% and 100% design plans Construction Plans, Specifications, Bid Documents, Construction Cost Estimate and permitting for the proposed for Clients review.
- Fee \$ 2,100.00
- Powderhouse Engineering Fee \$ 4,500.00**

South Park:

- Part 1** Provide Surveying Services for topographic survey of proposed project area.
- Topographic survey and right-of-way investigation from existing Crow Creek Greenway bridge at Deming Drive to the existing Greenway along Partoyan Drive.
- Fee \$ 4,500.00
- Part 2** Provide Engineering Services for preparation of Drainage Report and design for a project with a total project area less than 40,000 square-feet.
- Fee \$ 2,450.00
- Part 3** Provide Engineering Services for preparation of 35% design plans for Clients review.
- Fee \$ 4,800.00
- Part 4** Provide Engineering Services for preparation of 65%, 95% and 100% design plans Construction Plans, Specifications, Bid Documents, Construction Cost Estimate and permitting for the proposed for Clients review.
- Fee \$ 7,300.00
- South Park Design Fee \$ 19,050.00**

Henderson Drive (100% design):

- Part 1** Provide Surveying Services for topographic survey of proposed project area.
- Topographic survey and right-of-way investigation from existing Greenway along Union Pacific Railroad, north along Henderson

Drive to east Nationway roadway, across Nationway to Sparks Road.

Fee \$ 2,950.00

Part 2 Provide Engineering Services for preparation of Drainage Report and design for a project with a total project area less than 40,000 square-feet.

Fee \$ 3,800.00

Part 3 Provide Engineering Services for preparation of 35% design plans for Clients review.

Fee \$ 4,400.00

Part 4 Provide Engineering Services for preparation of 65%, 95% and 100% design plans Construction Plans, Specifications, Bid Documents, Construction Cost Estimate and permitting for the proposed for Clients review.

Fee \$ 5,000.00

Henderson Drive Design Fee \$ 16,150.00

Downtown Connector (100% design):

Part 1 Provide Surveying Services for topographic survey of proposed project area.

- Topographic survey and right-of-way investigation from northwest corner of the intersection of Missile Drive and W. Lincolnway, along Dey avenue to Ames Avenue.

Fee \$ 2,500.00

Part 2 Provide Engineering Services for preparation of Drainage Report and design for a project with a total project area less than 40,000 square-feet.

Fee \$ 2,100.00

Part 3 Provide Engineering Services for preparation of 35% design plans for Clients review.

Fee \$ 5,400.00

Part 4 Provide Engineering Services for preparation of 65%, 95% and 100% design plans Construction Plans, Specifications, Bid Documents, Construction Cost Estimate and permitting for the proposed for Clients review.

Fee \$ 7,600.00

Downtown Connector Design Fee \$ 17,600.00

Cowboy Dodge (100% design):

Part 1 Provide Surveying Services for topographic survey of proposed project area.

- Topographic survey and right-of-way investigation along East. Lincolnway from Advanced Auto Parts at 1109 East Lincolnway to Fat Boys Tires at 1151 East Lincolnway,

Fee \$ 1,000.00

Part 2 Provide Engineering Services for preparation of Drainage Worksheet for a project with a total project area less than 20,000 square-feet.

Fee \$ 100.00

Part 3 Provide Engineering Services for preparation of 35% design plans for Clients review. Fee \$ 1,200.00

Part 4 Provide Engineering Services for preparation of 65%, 95% and 100% design plans Construction Plans, Specifications, Bid Documents, Construction Cost Estimate and permitting for the proposed for Clients review. Fee \$ 3,100.00

Cowboy Dodge Design Fee \$ 5,400.00

Sub-Total Design Fee \$ 62,700.00

Note:

This proposal includes the cost for one single construction plan set and bid documents showing all five (5) of the above described segments being bid on together. Bidding services include: Preparation for and Conducting a Pre-Bid Meeting, Attending the Bid Opening and Reviewing Bids with City Staff. Additional project bidding shall be billed at the following rate:

- Principal Engineer - \$ 115.00/hour
- Project Engineer - \$ 100.00/hour
- Engineering Technician - \$ 60.00/hour
- Secretarial Services - \$ 30.00/hour

Each 35%, 65%, 95% and 100% submittal shall include one (1) hard copy and electronic copy. Additional hard copies shall be invoiced at cost.

Construction Management:

Provide Engineering Construction Management Services for the proposed Greenway Segments 1 through 5. A 12-week construction schedule is used to estimate the following Construction Management budget for the project. Services performed under Construction Management:

- a. Review Shop Drawings and Submittals
- b. Review Contractor Pay Applications before Submitting to City for Approval
- c. Conduct Weekly Construction Meetings with Contractor and Subcontractors
- d. Change Order Preparation and Recommendations
- e. Conduct On-Site Inspections: two site visits to each segment under construction per week
- f. Punch List and Final Inspection at each segment

Powderhouse	Project Engineer	34 hrs. x \$100/hr.	\$3,400.00
	Sub-Total		\$3,400.00
South Park	Project Engineer	86 hrs. x \$100/hr.	\$8,600.00
	Sub-Total		\$8,600.00
Henderson Drive	Project Engineer	55 hrs. x \$100/hr.	\$5,500.00
	Sub-Total		\$5,500.00

Downtown	Project Engineer	70 hrs. x \$100/hr.	\$7,000.00
	Sub-Total		\$7,000.00

Cowboy Dodge	Project Engineer	50 hrs. x \$100/hr.	\$5,000.00
	Sub-Total		\$5,000.00

Construction Management Fee	\$29,500.00
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Total Design & Construction Management Fee for 100% Design Segments = \$92,200.00

Pump House Park (35% design):

Part 1 Provide Surveying Services for topographic survey of proposed project area.

- Topographic survey and right-of-way investigation from west end West 15th Street to the east side of Pump House Park.

Fee \$ 750.00

Part 2 Provide Geotechnical Engineering Services, Terracon will perform the Geotechnical Analysis for the proposed underpass crossing.

1. Obtain railroad right-of-way permit from UPRR.
2. Drill a total of 5 holes: 2 holes for the RR culvert to a depth of 20 feet and 3 holes along the greenway path to 5 feet.
3. Install two temporary piezometers in RR holes, if needed.
4. Sampling with standard split spoon and California barrels.
5. Lab testing for index properties and consolidation.
6. Reporting to include recommendations for subgrade preparation along greenway path and recommendations related to culvert bearing capacity, settlement, lateral earth pressures and earthworks as required by AREMA guidelines.

Base geotechnical work and reporting - \$8,000

Railroad permitting - \$9,300

Fee \$ 17,300.00

Part 3 Provide Structural Engineering Services, Ayres Associates will complete a Type Selection Report for the underpass structure. The UPRR requires a Type Selection Report for all railroad underpasses to be reviewed by the railroad. The Type Selection Report includes the preliminary structural design of the underpass and necessary retaining walls.

Fee \$ 5,000.00

Part 4 Provide Engineering Services for preparation of Drainage Report and design for a project with a total project area less than 40,000 square-feet.

Fee \$ 2,100.00

Part 5

Provide Engineering Services for preparation of 35% design plans of path and underpass in compliance with Union Pacific Railroad preliminary design standards. City shall complete UPRR application

Fee \$ 7,400.00

Pump House Park 35% Design Fee \$ 32,550.00

Provide Engineering Services for any additional project Bidding and Construction Management Services on an as-need basis. Work performed by Summit Engineer, LLC under this section of this contract shall be billed at the following rate:

- Principal Engineer - \$ 115.00/hour
- Project Engineer - \$ 100.00/hour
- Engineering Technician - \$ 60.00/hour
- Secretarial Services - \$ 30.00/hour

Services Outside the Scope of this Proposal

The Scope of Services listed above does not include the following:

1. Structural Engineering Services, unless outlined above.
2. Construction Surveying Services
3. Traffic Studies
4. Traffic Signal Engineering Services
5. Electrical Engineering Services
6. Storm Water Pollution Prevention Plan (SWPPP)
7. Landscape Design
8. Irrigation design

Scope of Services:

The Scope of Services listed above represents our best effort to set forth those services which we believe to be those requested by you, the client, and or those we can determine to be needed to accomplish a particular objective. However, we recognize, and we ask that the client recognize that as the project progresses the scope of services as originally defined may change in content to include work not initially identified. Several factors will cause this to happen:

- Better understanding of the project and the client's goals as progress on the project is made.
- Additional requirements identified by client.
- Policy changes or additional requirements by the permitting agencies.

If these influences occur and are identified, we will advise you and seek your direction as to how you wish to proceed.

Invoicing Payment:

Work will be invoiced on approximately on the 1st day of each month based on the attached fee schedules, with payment expected upon receipt of the invoice by the client.

If the proposed work and fees contained herein are agreeable with you, please sign one of the enclosed copies of this proposal and return to our office and keep the other copy for your records. Should you have any questions regarding the above, please do not hesitate to contact me.

Sincerely,



Larry R. Gallagher, P.E.
Summit Engineering, LLC

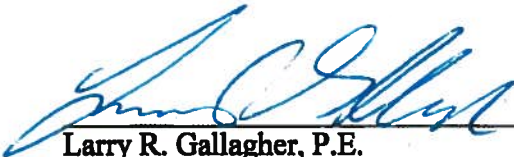
Acceptance of Proposal:

The above fees, terms, conditions and specifications are satisfactory and are accepted. You are authorized to do the work as specified. Payment will be made as outlined above.

THIS PROPOSAL ACCEPTED BY:

Richard Zita 12-28-18

Mr. Richard Zita Date:
City of Cheyenne Urban Planning Department

 12-21-18

Larry R. Gallagher, P.E. Date:
Summit Engineering, LLC

Design Schedule

2019 Miscellaneous Greenway Segments

Powderhouse, South Park, Henderson Drive and Cowboy Dodge:

- 35% design, 8-weeks from Notice to Proceed
- City Review, 1-week
- Pre-application meeting with City staff and W.D.O.T.
- 65% Design, 2 to 3-weeks
- 65% Engineering Plan Review (EPR), 3-weeks
- 95% Design, 2 to 3-weeks
- 95% Engineering Plan Review (EPR), 2-weeks
- 100% Design, 2-weeks
- 100% Engineering Plan Review (EPR), 2-weeks

Downtown Connector:

- 35% design, 6-weeks from 100% Design for above four Segments
- City Review, 1-week
- Pre-application meeting with City staff and W.D.O.T.
- 65% Design, 2 to 3-weeks
- 65% Engineering Plan Review (EPR), 3-weeks
- 95% Design, 2 to 3-weeks
- 95% Engineering Plan Review (EPR), 2-weeks
- 100% Design, 2-weeks
- 100% Engineering Plan Review (EPR), 2-weeks

Pump House Park:

- Railroad permit for Geotechnical boring, 8 to 12-weeks
- Geotechnical borings and report, 4 to 5-weeks
- Structural Design, 4-weeks
- 35% Design, 3 to 4 weeks



**RE: MISCELLANEOUS GREENWAY DESIGN SEGMENTS
SCOPE OF WORK**

TO: Larry Gallagher, Summit Engineering

BY: Richard Zita, Greenway / Park Project Manager

DATE: December 5, 2018

The City of Cheyenne will review design proposals for six segments along the Greenway Trail. Five segments will be designed to 100% bid ready packages. The sixth will be a 35% package for Union Pacific preliminary review. Funding will be from the 2017 6th Penny Tax. The segments are described below:

1. Powderhouse (between Gardenia and Storey Blvd.)
2. South Park (between Partoyan to Walterschied; Walterschied to GW bridge on Deming)
3. Henderson Drive (from E. Nationway to existing Greenway)
4. Downtown Connector (MLK park across Lincolnway to Dey to Ames to Pump House park)
5. Cowboy Dodge (from Advance Auto to Fat Boys driveway)
6. Pump House Park (15th St via UPRR underpass at Reed Ave. right-of-way)

Design fee proposals must be from professional engineering firms licensed to work in Wyoming and must have a Statement of Qualifications (SOQ) on-file with the City Engineer's office to be considered. All drawings necessary for project completion will be completed by civil engineers licensed by the Wyoming State Board of Examining Engineers.

Information submitted shall be incorporated by reference into and be considered part of the contract between the City of Cheyenne and the selected firm. The City of Cheyenne reserves the right to make modifications to the Scope of Work as it sees fit. Firms obtaining this Scope of Work will be formally notified of any modifications.

A pre-submittal meeting will be scheduled at the nearest opportunity. An on-site walk through will only be held upon request. Submittal of proposals, (1 hard copy, 1 digital format), are to be filed with the Urban Planning Department, 2101 O'Neil Avenue, Rm. 205, Cheyenne, WY by 2:00 pm, Friday, December 21, 2018.

Project Background:

The six trail segments were identified as high priority projects by public surveys, workshops, meetings and members of the Greenway Advisory Committee. These segments are located

throughout the city and will help close gaps in the bike/ped system. Most segments are traditional Greenway segments, with 10' wide separated concrete trails, others are 8' wide curb-tight Shared Use trails along established roadways. One underpass is proposed below a single track spur of the Union Pacific Railroad in downtown Cheyenne (Segment No. 6).

Two of the six segments still require access easements and the City is actively pursuing them. In lieu of accessing those sites to gather topographical information, the City will accept existing GIS topographic information available from Laramie County or other recognized sources. Contractor will not be responsible for securing or documenting needed access easements to complete their design work.

Impervious surface areas greater than 20,000 s.f. will require coordination and approval from the city's storm water / water quality department.

Exhibits illustrating the desired alignments and connections are for reference only. The contractor is advised to visit each site individually to verify existing conditions prior to submitting a fee proposal. All design segments to meet current City and Greenway design standards, including ADA-compliant curb cuts, transitions and tactile warning at designated approaches and intersections.

The city would like to approve, bid and construct as many segments as possible during the 2019 building season. Projects not completed in 2019 will be completed in 2020, provided funding is available.

Scope of Work:

The selected firm will be asked to provide the following services:

- a. Verify all ROW and utility locations that may affect design work for the six described trail segments. Notify PM of discrepancies or potential conflicts.
- b. Prepare plans and specifications for contractor bidding, including 35%, 65%, 95% and 100% design submittal packages.
- d. Include cost estimates with each design phase submittal. Provide hourly rates to assist with bid preparation and include construction observation services for the segments to be built. These hours can be negotiated at time of bidding.
- e. Provide all materials, equipment, tools and labor to complete the design work described on the attached exhibits.
- f. The Contractor shall work with the Greenway project manager and the City's engineering department to prepare the design documents for construction bidding.
- g. Attend council and engineering review meetings as required.

Project Segments:

1. Powderhouse (100% design):

This shared trail segment is approximately 1,025' long and connects Gardenia

south to the existing shared trail segment north of Storey. Design to connect the existing segments in Gardenia to the intersection at Powderhouse. Improvements include: an 8' curb tight shared concrete path with gutter and curb; a revised drainage swale or pipe as needed to handle surface flow; ADA improvements at intersection with Gardenia and a marked cross walk.



Powderhouse looking north with unimproved edge



Powerhouse at existing shared walk terminus, just north of Storey, looking south

2. South Park (100% design):

This segment is nearly 2,275' and begins where the Partoyan Greenway terminates at 6th Street, follows the 2012 conceptual plan by Alta, including a bench and look-out point, traverses the slope down to Waltersheid at no more than a 5% grade; creates a new cross-walk and extends the GW along Deming to intersect the existing Greenway at Crow Creek.



Partoyan looking north to group mailboxes



Fourth Street ROW at Thomes Street looking uphill to the west

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3. **Henderson Drive – South from Sparks Rd to existing Greenway (100% design):**
This Greenway segment runs approximately 3,180' from Sparks Road south along the Henderson ditch to meet the existing Greenway in Sun Valley. Design to connect to the existing footbridge leading to Lebhart School and provide a timber guardrail the entire length along the Henderson ditch. Provide smooth transitions at each end of new segment to existing grade. Provide stop and safety signs per spec and cross walks as needed.



View from existing GW spur looking north along Henderson Ditch



Henderson Ditch looking south. Verify gas line location and depth

4. **Downtown Connector (100% design):**

This segment improves the cross-walk at Missile Drive and W. Lincolnway with new ADA curbs, improved cross-walk striping, cross-walk signs and activators. Segment utilizes the existing bridge along Lincolnway. Plan reconfigures Dey Avenue into a one-way connector to Ames and utilizes the remaining lane for a landscape bioswale buffer and Greenway. Dey Avenue realigns to meet Ames Avenue at a ninety-degrees with new stop sign. Greenway makes turn onto Ames and aligns with existing entry into Pump House Park. New cross-walks, ADA ramps, in-pavement lights, refuge island and activators are included.



Existing MLK Park crossing at W. Lincolnway



Dey Avenue from Ames looking west

5. Cowboy Dodge between Advanced Auto and Fat Boys (100% design):

This 360' x 8' wide shared segment begins at 1109 E. Lincolnway, at the existing east boundary of Advanced Auto Parts, and extends to the existing driveway at Fat Boys, 1151 E. Lincolnway. Trail will need a landscape buffer along E. Lincolnway as space allows. Trail may need a low retaining wall to level grades, timber guardrail, and a continuous underground storm drain pipe per WYDOT spec. within ROW. Stops signs at existing driveways crossings and marked cross walks will be required. Access easement has not yet been secured. Plans to be formatted for WYDOT review.



East edge at Fat Boys Driveway



West edge of Cowboy Dodge at walk termination

6. Pump House Park to 15th Street via UP Underpass (35% design):
This segment is approximately 585' long and extends east from the ADA parking pad in Pump House Park to 15th Street and includes an underpass section of approximately 40' below a single spur line of the UP Railroad. Design program includes: 10' wide Greenway with timber guardrail along both sides; conceptual design for underpass box culvert, including lighting and typical section; conceptual grading plan to insure positive drainage and transition at 15th Street. Survey and geotechnical report is included. Plans to be formatted for UP Railroad review. City to prepare application.



15th Street termination looking west to UP Railroad spur



Reed Avenue corridor termination at UP Railroad spur

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Project Schedule:

Pre-bid Meeting :	Week of December 10, 2018
Proposal Due:	December 21, 2018
Preliminary Approval:	January 14, 2019
Council Meeting:	First Reading January 28, 2019
Finance Committee:	February 4, 2019
Council Approval:	Resolution February 11, 2019
Execute Contract:	14 days
Begin Project:	February 25, 2019
End Project:	December 31, 2019

Project Contacts:

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